

**IN THE CIRCUIT COURT OF THE THIRTEENTH JUDICIAL CIRCUIT
IN AND FOR HILLSBOROUGH COUNTY, FLORIDA**

CHRISTOPHER HANSON, individually and
as attorney for himself and attorney/next friend
for his minor children [8 years old] and [6 years old],

Plaintiff,

v.

Case No.: 2025-CA-10255

THIRTEENTH JUDICIAL CIRCUIT
COURT, CLERK OF THE COURT
FOR THE THIRTEENTH JUDICIAL
CIRCUIT, GINA JUSTICE (AND/OR
CURRENT COURT ADMINISTRATOR),
CHIEF JUDGE CHRISTOPHER C.
SABELLA, JUDGE KELLY AYERS,
JUDGE MATTHEW FELIX, MIKE MOORE,

Defendants.

_____ /

MOTION FOR PROTECTIVE ORDER TO STAY DISCOVERY

Defendants, Thirteenth Judicial Circuit Court, Court Administrator of the Thirteenth Judicial Circuit, Chief Judge Christopher C. Sabella, Judge Kelly Ayers, and Judge Matthew Felix (hereinafter “Defendants”), pursuant to Fla. R. Civ. P. 1.280(c), hereby files this Motion for Protective Order, and in support hereof states the following:

On November 13, 2025, Plaintiff filed the Amended Petition/Complaint for Writ of Mandamus, seeking disclosure of judicial records as they pertain to a divorce and custody proceeding 24-DR-1150, in compliance with Florida Statute 119. In Support of his Petition, Plaintiff filed Exhibits on October 15, 2025, to support his initial complaint filed on October 14, 2025. Plaintiff’s Amended Petition cites the exhibits filed These exhibits include his public record

requests, Plaintiff's subsequent communication with Court Administrative Staff, and correspondence with Chief Judge Sabella.

Plaintiff has requested to depose many people related to his underlying divorce case, including some of the named defendants, including Judge Ayers. Because this is a mandamus action, discovery should be stayed pending further ruling by the Court.

Defendants Should be Protected from Engaging in Discovery and Discovery Should be Stayed Pending a Ruling from the Court

Pursuant to Fla. R. Civ. P. 1.280(c), protective orders may be issued “[u]pon motion by a party or by the person from who discovery is sought, and for good cause shown, the court in which the action is pending may make any order to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense that justice requires.” *See Waite v. Wellington Boats, Inc.*, 459 So. 2d 425, 426 (Fla. 1st DCA 1984).

Courts have discretion as to whether or not to stay proceedings. *Clinton v. Jones*, 520 U.S. 681, 706 (1997). Relevant case law makes clear that discovery should not proceed until immunity and other dispositive issues have been resolved pending a motion to dismiss. *See State Dept. of Lottery v. Curcio*, 71 So. 3d 931, 931-932 (Fla. 1st DCA 2011) (holding that sovereign immunity defense raises questions of law, which can be resolved without a resort to discovery); *see also Feigin v. Hospital Staffing Services, Inc.*, 569 So. 2d 941, 942 (Fla. 4th DCA 1990) (trial court did not err in staying discovery and deposition pending a hearing on motion to dismiss).

Florida courts may look to federal rules and decisions for guidance in interpreting Florida's civil procedure rules. *Gleneagle Ship Mgt. Co. v. Leondakos*, 602 So. 2d 1282, 1283-1284 (Fla. 1992). Federal courts have held that good cause exists to stay discovery where resolution of a preliminary motion may dispose of the entire action. *See Nankival v. Lockheed Martin Corp.*, 216 F.R.D. 689, 692 (M.D. Fla. 2003); *Caraballo-Sandoval v. Honsted*, 35 F. 3d 521, 524 (11th Cir.

1994); *Patterson v. United States Postal Service*, 901 F. 2d 927, 929 (11th Cir. 1990). *Moore v. Potter*, 141 Fed. Appx. 803, 807-808 (11th Cir. 2005) (affirming stay of discovery until ruling on defendant's motion to dismiss); *Harlow v. Fitzgerald*, 457 U.S. 800, 817-818 (1982).

“Mandamus is a common law remedy used to enforce an established legal right by compelling a person in an official capacity to perform an indisputable ministerial duty required by law.” *Bd. of Cnty. Com'rs of Broward County v. Parrish*, 154 So. 3d 412, 417 (Fla. 4th DCA 2014) (citation omitted). “Mandamus is an appropriate remedy to compel the timely production of public records requested under Chapter 119.” *Williams v. State*, 163 So. 3d 618, 620 (Fla. 4th DCA 2015) (citation and internal quotation marks omitted). *Moeller v. Se. Florida Behavioral Health Network, Inc.*, 392 So. 3d 579, 586 (Fla. 4th DCA 2024)

“To be entitled to mandamus relief, the petitioner must have a clear legal right to the requested relief, the respondent must have an indisputable legal duty to perform the requested action, and the petitioner must have no other adequate remedy available.” *Parrish*, 154 So. 3d at 417 (citation and internal quotation marks omitted). Further, to set forth a cause of action under the state's Public Records Act codified in chapter 119, Florida Statutes (2022), a party must show “they made a specific request for public records, the [respondent] received it, the requested public records exist, and the [respondent] improperly refused to produce [the public records] in a timely manner.” *O'Boyle v. Town of Gulf Stream*, 257 So. 3d 1036, 1040 (Fla. 4th DCA 2018) (citation omitted). *Moeller v. Se. Florida Behavioral Health Network, Inc.*, 392 So. 3d 579, 586 (Fla. 4th DCA 2024) The Florida Supreme Court in *State v. Smith* established that discovery disputes “are redressible by appeal and not by mandamus” *State v. Smith*, 104 Fla. 91 (1932), indicating that discovery is not part of the mandamus framework. Rule 1.630's focus on record attachment demonstrates that mandamus is designed to be decided on existing evidence.

Here, Pro Se Attorney seeks to question Judges and other Court Administrators in relation to their role as Judges to these proceedings and their respective roles within the public records request. As it relates to the Judges and their overseeing the case, not only is this wholly improper, clearly necessitating the protection of Rule 1.280, but it is also well-settled under Florida law that judges are entitled to absolute immunity for acts performed in the course of their judicial capacity. *Kalmanson v. Lockett*, 848 So. 2d 374 (Fla. 5th DCA 2003); *Berry v. State of Florida*, 400 So. 2d 80 (Fla. 1981). A party may not depose or otherwise compel the testimony of a judge unless “. . . the testimony is absolutely necessary to establish factual circumstances not in the record . . .” *State v. Lewis*, 656 So. 2d 1248, 1250 (Fla. 1994). See also Charles W. Earnhardt, *Florida Evidence*, § 607.1, at 366 & n.1 (1994) (“Generally judges cannot be compelled to testify as to matters concerning their judicial duties”). This longstanding doctrine “protects judges from liability for damages for acts performed in the course of their judicial capacities unless they clearly act without jurisdiction.” *Limehouse v. Whittemore*, 773 So. 2d 86, 87 (Fla. 2d DCA 2000), citing *Johnson v. Harris*, 645 So. 2d 96, 97-98 (Fla. 5th DCA 1994). Moreover, this doctrine preserves an independent judiciary. *Limehouse*, 773 So. 2d at 87. With respect to the Court’s mental impressions involved in this litigation, they are protected by judicial immunity and not subject to discovery. See *DHSMV v. Marks*, 898 So.2d 1063 (Fla. 5th DCA 2005), citing *Johnson v. Harris*, 645 So.2d 96, 98 (Fla. 5th DC A 1994). Any mental impressions that are not subject to judicial immunity would have been provided in the public records request and have been filed as part of the mandamus case.

Conclusion

Mandamus is an extraordinary remedy that should be limited to compelling clear legal duties, not resolving complex factual disputes that require extensive discovery. Allowing

discovery would transform mandamus into ordinary civil litigation and undermine its streamlined nature. While Plaintiff may argue that this process has not been streamlined, that is completely due to Plaintiff's continued requests and misunderstanding of the mandamus procedure. Plaintiff seeks the same documents in discovery that are subject to the litigation, which Respondents have stated are confidential by statute. Despite the filing of this mandamus case, Plaintiff continues to seek alternative avenues to obtain confidential records. While the response to the public record request was not provided to Plaintiff in his ideal discovery format, the documents received are still responsive and discovery is improper for a mandamus proceeding as the documents subject to the litigation have been filed with the Court as part of the initial filing or are confidential and have not been provided in accordance with the Florida Statutes.

WHEREFORE, based on the foregoing arguments, Respondents respectfully move this Honorable Court for an order staying discovery and for protection from having to answer any such discovery.

Respectfully Submitted,

JAMES UTHMEIER
ATTORNEY GENERAL

/s/ Jessica Schwieterman

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Sabella, Judge Ayers, and Judge Felix

CERTIFICATE OF SERVICE

I hereby certify that on April 1, 2026, I electronically filed the foregoing with the Clerk of Court by using the Florida Courts eFiling Portal.

/s/ Jessica Schwieterman
Jessica Schwieterman
Senior Assistant Attorney General